

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jenelle Slavin	Team: Team # 7	CCRB Case #: 200406525	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 07/04/2004 11:00 PM	Location of Incident: in front of § 87(2)(b)	Precinct: 70	18 Mo. SOL 1/4/2006	EO SOL 1/4/2006	
Date/Time CV Reported Wed, 07/07/2004 1:45 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/07/2004 1:45 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Scott Nuzzi	27541	930851	070 PCT
2. SGT Norman Grandstaff	92445	922445	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Scott Nuzzi	Discourtesy: PO Scott Nuzzi spoke obscenely and rudely to § 87(2)(b)	
B.SGT Norman Grandstaff	Force: Sgt Norman Grandstaff used force against § 87(2)(b)	
C.POM Scott Nuzzi	Force: PO Scott Nuzzi used physical force against § 87(2)(b)	
D.POM Scott Nuzzi	Force: PO Scott Nuzzi used a chokehold against § 87(2)(b)	

Synopsis

§ 87(2)(b) filed a complaint with IAB on July 6, 2004 at 1:30 p.m. on the behalf of § 87(2)(b) her niece. § 87(2)(b) stated that § 87(2)(b) had called her from Brooklyn Central Booking and asked her to file a complaint for her. On July 6th around 4:30 p.m. after being released from jail, § 87(2)(b) went to the 70th Precinct and filed a CCRB complaint. On July 4, 2004 § 87(2)(b) was on § 87(2)(b) in Brooklyn celebrating the 4th of July with her family and friends. A firework had just finished going off in the street and § 87(2)(b) went into the street to kick it out of the way. PO Scott Nuzzi and Sgt. Norman Grandstaff drove up. PO Nuzzi asked § 87(2)(b) if she was "fucking stupid," and he told her to get out of the "fucking street." (Allegation A) § 87(2)(b) told PO Nuzzi that he did not have to speak to her like that. She then followed his order to get out of the street. § 87(2)(b) walked away from them with her back towards the officers. PO Nuzzi and Sgt. Grandstaff exited their car after her. However, neither officer asked her to stop. Sgt. Grandstaff grabbed § 87(2)(b)'s left arm and twisted it. (Allegation B) PO Nuzzi then grabbed § 87(2)(b)'s hair and pushed her to the ground (allegation C). § 87(2)(b) stated that in the midst of this PO Nuzzi put her in a headlock, which restricted her breathing (allegation D). Once on the ground PO Nuzzi put handcuffs on § 87(2)(b). § 87(2)(b) did not resist the officers at all during this incident. On the way to the 70th Precinct PO Nuzzi told § 87(2)(b) that she would receive a summons at worst. However, when § 87(2)(b) was searched at the Precinct, marijuana was recovered. PO Nuzzi then decided to arrest § 87(2)(b). He arrested her for

§ 87(2)(a) 160.50

§ 87(2)(g)

Summary of Complaint

On July 6, 2004 § 87(2)(b) called § 87(2)(b) from custody. § 87(2)(b) asked § 87(2)(b) to file a complaint against PO Nuzzi on her behalf. On July 6, 2004 at 1:30 p.m. § 87(2)(b) filed the complaint on the behalf of § 87(2)(b). On July 6, 2004 at 1:40 p.m. Lt. Schoen from the Brooklyn Court Command told Sgt. Benson, also from the Brooklyn Court Command, to interview § 87(2)(b). Sgt. Benson stated that he spoke with § 87(2)(b) and that she did not allege any misconduct and that she did not have any visible injuries. However, Sgt. Benson did not record his conversation with § 87(2)(b) (enclosure 5A-5B). Later that evening, § 87(2)(b) filed a written CCRB complaint at the 70th Precinct. On July 14, 2004 § 87(2)(b) was interviewed at her apartment on § 87(2)(b) in Brooklyn. § 87(2)(g)

On July 4, 2004 at around 11:00 p.m. § 87(2)(b) crossed § 87(2)(b) to kick a firework out of the street to the curb. When the firework fell the barrel was facing toward the building. § 87(2)(b) stated that she did not light this firework, but for safety reasons she wanted to move it out of the street. When she kicked the firework a police car drove up with PO Scott Nuzzi driving and Sgt. Norman Grandstaff in the passenger seat. § 87(2)(b) identified PO Nuzzi by looking at his shield and speaking with him at the Station House. She identified Sgt. Nuzzi through a photo array during her interview on July 14, 2004 (enclosure 10-10F).

PO Nuzzi said out of the window, "Are you fucking stupid, get the fuck out of the street." § 87(2)(b) responded by saying, "no problem, you do not have to speak to me like that." PO Nuzzi said, "you want to be a tough guy." § 87(2)(b) thought that the incident was over so she turned around and walked away. Neither of the officers told § 87(2)(b) to stop. In § 87(2)(b)'s written statement she said "Officer Nuzzi then head locked me while his partner slammed me to the floor. Officer Nuzzi while I was being slammed down then put his knee in my back." During her CCRB interview, § 87(2)(b) was questioned about this interchange step by step. When § 87(2)(b) was asked to clarify and further explain, § 87(2)(b)

§ 87(2)(b) said that Sgt Grandstaff grabbed her left arm and twisted it. § 87(2)(b) received bruising on her left arm from this twist. Sgt. Grandstaff took a long, butane lighter out of her pocket, while he held onto her arm. Then, PO Nuzzi, who was standing behind her, grabbed her by the hair, "yoked her" (a headlock with PO Nuzzi's forearm across her neck) and slammed her down onto the ground. § 87(2)(b) stated that she was not able to breathe during this time. § 87(2)(b) received bruising above her lip from hitting the ground. PO Nuzzi fell to the ground with § 87(2)(b). PO Nuzzi then put a knee on her back. Sgt Grandstaff put handcuffs on § 87(2)(b) while she was on the ground. The officers picked her up and put her in the police car.

Sgt. Grandstaff stopped on the way to the precinct and got out of the car to speak with some other officers. While he was gone, § 87(2)(b) asked PO Nuzzi why this happened and PO Nuzzi said "if I was with my regular partner I would have given you a good kick in your ass and then let you go. But you can't disrespect us like that in public in front of a large crowd."

§ 87(2)(b) was taken to the 70th Precinct. At the precinct the officers found a marijuana cigarette in her pocket. Her keys, money, and the marijuana were all vouchered. While she was at the precinct she heard PO Nuzzi laughing and saying, "I had to yoke her up, because she thought she was tough." Sgt. Grandstaff told § 87(2)(b) "You should have just walked away and none of this would have ever happened." § 87(2)(b) did not understand this statement, because she had walked away. On July 5th, § 87(2)(b) was taken to Central Booking.

While § 87(2)(b) was in central booking she asked PO Nuzzi for an ambulance because her head was hurting, she could not feel her arm, and she was hyperventilating. PO Nuzzi told her, "if you go with the ambulance, you will never see the judge." § 87(2)(b) decided not to go with the ambulance because she was scared she would never see the judge. PO Nuzzi then told § 87(2)(b) "that's what happens when you try to be a tough guy-we make an example out of people like you."

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) stated that her mother, § 87(2)(b) her father, § 87(2)(b) her friends § 87(2)(b) § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were all present for this incident.

Officer Identification

§ 87(2)(b) identified PO Nuzzi by looking at his shield and then speaking with him. During § 87(2)(b)'s interview a photo array presentation was conducted. § 87(2)(b) immediately identified Sgt. Norman Grandstaff as being the other officer involved in this incident.

§ 87(2)(b)'s Photos

During her CCRB interview, § 87(2)(b) provided the CCRB with nine photographs taken by her friend, § 87(2)(b). § 87(2)(b) gave a statement to the CCRB over the phone (see below). During this statement, she stated that she was standing a few feet from § 87(2)(b) when this incident occurred. Photographs 4-9 were taken during the incident and photographs 1-3 were taken on July 7, 2004. (Enclosure 9A-9E)

Photograph 1 and 2- show bruising on § 87(2)(b)'s left arm. § 87(2)(b) stated that the bruise occurred when Sgt. Grandstaff grabbed her arm and twisted it.

Photograph 3- shows a red mark on § 87(2)(b)'s neck. § 87(2)(b) stated that PO Nuzzi caused this mark when he was grabbing her from behind and "yoking" her.

Photograph 4- shows § 87(2)(b) bent over at the waist. PO Nuzzi has his right hand on § 87(2)(b)'s ponytail and Sgt. Grandstaff has his left arm on § 87(2)(b)'s left arm. § 87(2)(b) is leaning into § 87(2)(b) in this picture.

Photograph 5- § 87(2)(b) is lying on the ground on her right side and PO Nuzzi has his right knee on the ground beside her and his body is over hers.

Photograph 6- § 87(2)(b) is on the ground face first. Both officers are above her and PO Nuzzi has his right hand on the ground supporting himself and his left hand on her back. It appears that § 87(2)(b) is being handcuffed.

Photograph 7- Both officers are holding onto § 87(2)(b)'s arms. It appears that they are picking her up off of the ground.

Photograph 8- § 87(2)(b) is walking with an officer on either side of her.

Photograph 9- Shows the 70th Precinct Car, car 1699.

Results of Investigation

Civilian Statements

IAB interviewed § 87(2)(b) on July 6, 2004 and she was interviewed at the CCRB on March 9, 2005. § 87(2)(g)

§ 87(2)(b) is § 87(2)(b) and § 87(2)(b) is her roommate and friend. At the CCRB § 87(2)(b) stated that everyone had been lighting fireworks all night and that a firework went off in the middle of the street. The barrel of the firework was pointing towards where all the people were, so § 87(2)(b) walked into the street to kick the firework out of the way. § 87(2)(b) had not lit this firework. While § 87(2)(b) was in the street, a police car drove up and PO Nuzzi told § 87(2)(b) to, "get the fuck out of the street, what are you doing." § 87(2)(b) said "you don't have to talk to me like that, but ok sir I am leaving right now." At this time § 87(2)(b) was standing about ten feet from § 87(2)(b) and was able to hear the conversation clearly. § 87(2)(b) followed PO Nuzzi's order and walked away from the officers across the street. To IAB § 87(2)(b) said that while § 87(2)(b) was walking away, the officers got out of the car, kicked the firework and grabbed the lighter § 87(2)(b) was holding in her hand. At the CCRB, § 87(2)(b) said that the lighter was in § 87(2)(b)'s pocket but that because it was a long lighter, the officers could see it sticking out. At the CCRB § 87(2)(b) stated that Sgt. Grandstaff asked § 87(2)(b) for the lighter and that § 87(2)(b) gave it to him. At IAB, § 87(2)(b) said that the officer was "getting loud" and § 87(2)(b) said "ok officer, ok officer." PO Nuzzi asked § 87(2)(b) if she was being a "smart-ass" and § 87(2)(b) told him that she was not trying to be. § 87(2)(b) turned away from the officers and walked off, following PO Nuzzi's order to get out of the street. At the CCRB, § 87(2)(b) said that Sgt. Grandstaff grabbed § 87(2)(b)'s arm as she was walking away. PO Nuzzi went behind § 87(2)(b) and grabbed her by the back of her neck, pulling her by the hair. At the CCRB § 87(2)(b) stated that she did not recall seeing PO Nuzzi put his arm across § 87(2)(b)'s neck and she did not recall him choking her. § 87(2)(b) stated that when she used the word "yoke" when she was describing the incident to IAB, that she had meant PO Nuzzi grabbing § 87(2)(b) from behind on the neck and pulling her back. PO Nuzzi used all of his strength and pushed § 87(2)(b) to the ground. § 87(2)(b) was standing close to § 87(2)(b) at this point. § 87(2)(b) was not expecting the push and she grabbed on to § 87(2)(b) to try and prevent the fall. § 87(2)(b) confirmed that she is the girl that § 87(2)(b) is holding onto in photograph number 4. § 87(2)(b) stated that she was not trying to interfere and that § 87(2)(b) simply grabbed her as she was falling because she was unprepared for the force that was used against her. § 87(2)(b) stated clearly that § 87(2)(b) was never resisting during this entire incident and that she was very compliant. The officers took § 87(2)(b) to the police car. § 87(2)(b), § 87(2)(b)'s father asked the officer, "why did you have to man-handle her like that." The officer replied, "we did not know that she was a girl." While IAB wrote that § 87(2)(b) indicated that it was possible that the officers could have mistaken § 87(2)(b) for a boy, on the tape § 87(2)(b) explicitly stated that § 87(2)(b) could not be mistaken for a boy. § 87(2)(b) had a disposable camera in her pocket because it was the 4th of July. § 87(2)(b) used this camera to take photographs. § 87(2)(b) told § 87(2)(b) that she had received bruises on her arm, her neck hurt and her back hurt. Finally, § 87(2)(b) stated that the incident happened very quickly and that the officers never asked § 87(2)(b) to stop and that they never told her that she was under arrest. § 87(2)(b) differentiated between PO Nuzzi and Sgt. Grandstaff by identifying them in photograph number 8.

§ 87(2)(b), § 87(2)(b)'s father, was interviewed at his work place on August 19, 2004. On July 4, 2004 § 87(2)(b) and at least 5 or 6 other people were shooting off fireworks on § 87(2)(b). § 87(2)(b) was sitting about 30 feet in front of § 87(2)(b) in a car waiting for § 87(2)(b)'s brother when he heard a lot of people yelling. He looked through his side mirror when he heard the yelling and he saw PO Nuzzi standing behind § 87(2)(b). § 87(2)(b) learned PO Nuzzi's name when he went to the 70th Precinct after the incident to help his daughter file a complaint. PO Nuzzi pulled § 87(2)(b)'s hair with one hand (he did not know which hand was used). PO Nuzzi then wrapped his other arm around § 87(2)(b)'s neck. PO Nuzzi pushed his weight forward onto § 87(2)(b) which caused § 87(2)(b) to fall onto the ground face first. PO Nuzzi went down on top of her. Another officer came over as well and both of the officers knelt on § 87(2)(b)'s back and handcuffed her. § 87(2)(b) did not know the other officer's name, but he knew that it was a Sergeant because the officer had stripes. § 87(2)(b) was not sure how § 87(2)(b) got off of the ground, but he saw her walk to the police car with the officers and then get in the police car. He followed them to the 70th Precinct. At the 70th Precinct § 87(2)(b) asked the Sergeant why they were so rough with his daughter. The Sergeant replied that he did not know she was a girl. § 87(2)(b) did not speak with PO Nuzzi at the Precinct, but he said that PO Nuzzi was laughing about what had happened with some other officers.

In the end of the interview § 87(2)(b) stated that his daughter has a "smart mouth." He did not hear if § 87(2)(b) was "mouthing off" to the police officers before the incident, but stated that some times § 87(2)(b) does not know when to walk away.

§ 87(2)(b), § 87(2)(b)'s mother, was interviewed on the phone on September 10, 2004 and then at the CCRB on October 8, 2004. § 87(2)(b) was standing on the sidewalk outside her apartment building. § 87(2)(b) was in the middle of the street and she had just lit a firework. Once the firework was finished a police car drove up with two officers. An officer got out of the police car and told § 87(2)(b) to give up the fireworks. § 87(2)(b) handed the fireworks to the officer and he got back in the car. § 87(2)(b) said something to the officers along the lines of have a good evening and the officer who had just gotten out accused her of being sarcastic. This same officer got back out of the car and said, "what do you want to be a wise guy." This officer grabbed her arm, grabbed the back of her neck and he pushed her forward. § 87(2)(b) fell onto the ground and this officer knelt on top of her. The second officer came in to help handcuff her and sat so that he was kneeling on her back. Both officers pulled § 87(2)(b) off of the ground and placed her in the police vehicle. § 87(2)(b) did not state that she ever heard an officer give any kind of warning to § 87(2)(b) or ask her to stop.

§ 87(2)(b), § 87(2)(b) and § 87(2)(b) were interviewed on July 13, 2004 at § 87(2)(b)'s apartment. They are all friends of § 87(2)(b). On July 4th, § 87(2)(b) and § 87(2)(b) were sitting together on the steps of building § 87(2)(b) across from § 87(2)(b) and § 87(2)(b) was standing in the same vicinity. § 87(2)(b) said that he saw § 87(2)(b) light the firework, however, § 87(2)(b) and § 87(2)(b) just said that there were fireworks that had been going on in the street. They did not state that § 87(2)(b) lit the firework. § 87(2)(b) saw § 87(2)(b) walking out of the street to the sidewalk. The officers walked over to § 87(2)(b). § 87(2)(b) said that § 87(2)(b) was walking away from one of the officers at this point. One of the officers pulled § 87(2)(b)'s ponytail and pushed her to the ground. § 87(2)(b) fell face forward onto the ground. Both of the officers got on top of § 87(2)(b) and put handcuffs on her. The officers then put § 87(2)(b) in the police vehicle and left. None of these individuals stated that they heard an officer give any kind of warning to § 87(2)(b) or ask her to stop at any point.

§ 87(2)(b) was interviewed over the phone on August 18, 2004. § 87(2)(b) was not present when the undersigned investigator went into the field, § 87(2)(b) missed her CCRB appointment and her phone became disconnected immediately following her CCRB interview. She did not respond to the letters that were sent to her. For these reasons she was not interviewed in person. On July 4, 2004 § 87(2)(b) was a few feet away from § 87(2)(b). § 87(2)(b) walked to the middle of the street to kick a firework to the curb. While § 87(2)(b) was in the street a police car drove up. The driver of the car said to § 87(2)(b) "what are you fucking stupid. Get the fuck out of the street." § 87(2)(b) walked away. While she was walking, this same officer grabbed § 87(2)(b) by the back of the neck and the hair. This officer and § 87(2)(b) fell to the ground. A second officer came in to help get § 87(2)(b) off the ground.

§ 87(2)(b) stated that § 87(2)(b) was not resisting. § 87(2)(b) did not state that she heard an officer give any kind of warning to § 87(2)(b) or ask her to stop.

§ 87(2)(b) was interviewed by Det. Robert Capizzuto on July 6, 2004. § 87(2)(b) stated that she did not witness any part of the event, but that § 87(2)(b) a friend of § 87(2)(b) s took pictures.

Officer Statements

PO Nuzzi's memobook (enclosure 21A-21C): 23:15 10-10 fireworks § 87(2)(b) 23:20 1 under § 87(2)(b) § 87(2)(b) refused medical attention, Vouchered keys, \$ 919, marijuana, lighter, fireworks"

Narrative on Complaint and Arrest Reports: § 87(2)(a) 160.50

It further states that physical force was used to prevent escape, but that there was no injury (Enclosure 22A-22F).

§ 87(2)(a) 160.50

Property Vouchered: PO Nuzzi prepared The property voucher. The following were vouchered: 2 packages of jumping jacks, 1 lighter, 1 cigarette containing alleged marijuana, \$919.00 (Enclosure 28A-28D).

PO Nuzzi

PO Nuzzi was interviewed on September 16, 2004. On July 4th PO Scott Nuzzi was Sgt. Grandstaff's operator. Prior to the incident PO Nuzzi was traveling southbound on § 87(2)(b) which is a four-lane street. Because he was responding to an assault in progress on § 87(2)(b) he was driving with full lights and sirens. When PO Nuzzi and Sgt. Grandstaff were approaching § 87(2)(b) they saw between 20 and 40 people setting off fireworks from a "big container" in the middle of the street. PO Nuzzi later stated that this container was a "coffee tin can...it was small and metal." This crowd of people was not blocking traffic enough to make traffic stop, but it caused the few cars in front of PO Nuzzi and the few cars coming the other way to veer off to the side. PO Nuzzi slowed down to 15 or 20 miles an hour and moved over to the far right-hand side of the street in order to avoid the crowd. PO Nuzzi stated that even though he had full lights and sirens on, the crowd did not notice his arrival. At this time PO Nuzzi saw § 87(2)(b) light a firework with a long barbecue lighter. When the firework went off it went straight up in the air. Everyone in the crowd backed away from the firework into the street. This caused PO Nuzzi to veer further to the right. When PO Nuzzi originally explained what happened he stated that he almost hit another vehicle. However, he later stated "I almost, I didn't say almost hit, but if I was going any faster I would have hit another vehicle." PO Nuzzi rolled his window down and advised everyone to move off of the streets. PO Nuzzi stated that "there was nothing but negative vibes in the crowd" and that "they were all just cursing, yelling at us and telling us to go on our way." However, he also stated that "everyone in the crowd backed up right away, so they were far enough away where I wasn't to threatened." Finally with regards to the crowd, he stated that no one from the crowd, other than § 87(2)(b) attempted to intervene at anytime.

He stated that § 87(2)(b) responded with "discourtesy and borderline disorderly conduct." § 87(2)(b) was "flagrantly cursing" and stating that she did not do anything wrong so she did not have to answer to PO Nuzzi. PO Nuzzi and Sgt. Grandstaff both got out of the car to disperse the crowd and possibly take any contraband to voucher. PO Nuzzi saw that § 87(2)(b) had a lighter and fireworks in her hand. Sgt. Grandstaff advised PO Nuzzi to take the lighter and fireworks from § 87(2)(b) and to "place her under arrest or possibly right her a ticket." § 87(2)(b) was walking away yelling over her shoulder "fuckin

police, I didn't do anything wrong, why are you harassing me, I didn't do anything fuckin wrong." PO Nuzzi stated that he "made a direct command for her to stop and that's when she did." § 87(2)(g) he later stated when she was backing away "I told her to stop come here and she wasn't stopping." Finally, PO Nuzzi stated § 87(2)(b) never ran or walked quickly. When PO Nuzzi arrived next to § 87(2)(b) he grabbed the fireworks and the lighter out of § 87(2)(b)'s hand. First PO Nuzzi stated that after taking the fireworks and the lighter he verbally commanded § 87(2)(b) a couple of times to put her hands behind her back. However, he later stated that he did not recall either himself or Sgt. Grandstaff asking § 87(2)(b) to put her hands behind her back after the lighter and fireworks were taken. PO Nuzzi also stated that after the lighter and fireworks were taken § 87(2)(b) started flailing her hands. When asked if he ever asked § 87(2)(b) to stop moving, PO Nuzzi stated that he did not recall doing so. In addition, he did not recall Sgt. Grandstaff ever asking her to stop. Finally PO Nuzzi stated, "you just don't tell somebody to put their hands behind their backs and let them do it."

Sgt. Grandstaff grabbed § 87(2)(b)'s right wrist and she "ripped her hand away." The first time PO Nuzzi explained what happened next he stated that he then placed his hand on her back and § 87(2)(b) "smacked" his hand off. At this time both PO Nuzzi and Sgt Grandstaff grabbed § 87(2)(b)'s hands and pushed her down to the ground to handcuff her. However, he later stated that he attempted to grab § 87(2)(b)'s hand and she "smacked it away" so he put his hand on her shoulder and used his weight to push her to the ground. PO Nuzzi tripped and fell on the ground beside her. However, he stated that he did not fall on top of her and that at no point was he on top of her or have his knee on her back. PO Nuzzi knelt beside § 87(2)(b) and handcuffed her. Once § 87(2)(b) was on the ground she did not resist, "because she knew she was being arrested" at that point. The officers then lifted her up. § 87(2)(b) walked to the car with the officers and got in the car. When she was in the car PO Nuzzi immediately told her that she was under arrest. He also told her "that it was not a big deal, that she would get a summons at the worst." PO Nuzzi and Sgt. Grandstaff did not make any stops on the way to the precinct and they never made it to the assault in progress.

When they got to the station house PO Barry, a female officer, searched § 87(2)(b) and found a marijuana cigarette in her bra¹. When this was uncovered PO Nuzzi decided to process her arrest. The officers vouchered marijuana, money and a barbecue lighter. PO Nuzzi said that § 87(2)(b)'s mother was not at the precinct and he could not recall whether or not she ever came to the precinct. He further stated that he did not have any discussion with the mother, the father or anyone else related to § 87(2)(b).

PO Nuzzi stated that § 87(2)(b) did not receive any visible injuries from this incident and that he could not recall whether or not § 87(2)(b) was complaining of any pain. He said that an ambulance came and the ambulance workers looked at § 87(2)(b). The ambulance workers said that there was nothing that they could do for § 87(2)(b) because she was not bleeding, she was not bruising and she was not swelling. Finally he stated that § 87(2)(b) refused medical attention from EMS.

When asked to describe § 87(2)(b) PO Nuzzi stated she is "female, Latino, long dark hair, short, thin." He stated that he did not know she was a female because she was "thin, short, she held herself like a male and her hair was not well kept like a female's." He stated that he did not know she was a female until they were in the car. He stated that the interaction would probably not have been any different however, if he had known.

PO Nuzzi stated that neither he nor Sgt. Grandstaff used profanity. He never told § 87(2)(b) to get out of the fucking street and he never asked § 87(2)(b) if she was fucking stupid. He never had an arm across her chest or neck. Finally, he stated that he did not know what the term yoke means. However, he did admit that he grabbed her from behind by placing his hands on her upper back

Sgt. Grandstaff's memobook: "23:15 observe F/H f/o § 87(2)(b) in middle of street shooting off fireworks, causing cars (including ours) to swerve nearly causing accidents at above mentioned F/H to be

1 Ms. § 87(2)(b) said that the marijuana cigarette was in her front pants pocket.

struck. Asked F/H for ID. F/H became violent, flailing her arms refusing to be handcuffed. 23:20 one under to SH. 02:20 ECT." (enclosure 19A-19C)

Sgt. Grandstaff was interviewed at the CCRB on October 13, 2004. PO Nuzzi and Sgt. Grandstaff were on routine patrol driving southbound on § 87(2)(b) § 87(2)(g), Sgt. Grandstaff stated that he did not think that they had their lights and sirens on. Sgt. Grandstaff stated that when they were around § 87(2)(b) he and PO Nuzzi saw § 87(2)(b) standing in the middle of the street shooting off fireworks. § 87(2)(g), Sgt. Grandstaff stated that § 87(2)(b) was alone in the street. There was a steady flow of traffic and both the officers and the northbound traffic swerved, almost causing an accident. The officers stopped even with § 87(2)(b) and rolled down the window and asked § 87(2)(b) to get out of the street. § 87(2)(b) told the officers to go fuck themselves and the officers got out of the car in order to confiscate the fireworks and issue § 87(2)(b) a summons for fireworks. He stated that the fireworks were recovered at the scene, but that he did not recall whether he or his partner recovered them, where they recovered them, or when they were recovered.

As soon as the officers exited the car § 87(2)(b) "started back peddling." When asked what was meant by back peddling, Sgt. Grandstaff said that § 87(2)(b) was facing the officers and walking backward flailing her arms. Sgt. Grandstaff did not recall § 87(2)(b) saying anything and he was unaware of what the crowd on the sidewalk was doing at this point. Sgt. Grandstaff stated that the crowd was large but that the crowd did not do anything that alarmed him or threatened him at any point during the incident. Sgt. Grandstaff said that § 87(2)(b) was asked to stop at some point but that he did not recall when she was asked. § 87(2)(b) disregarded this order. Sgt. Grandstaff stated that § 87(2)(b) "back-peddled" into the crowd and tripped, which caused her to fall down. When asked if this meant that § 87(2)(b) "back peddled" across two lanes of traffic Sgt. Grandstaff stated that he was not sure how she got all the way across both lanes. He stated that it is possible that § 87(2)(b) actually walked forward with her back to the officers at some point prior to back peddling. When § 87(2)(b) was back peddling Sgt. Grandstaff was approaching § 87(2)(b) on her left and PO Nuzzi was approaching her on the right. Sgt. Grandstaff said that as § 87(2)(b) was falling, PO Nuzzi also tripped and fell into § 87(2)(b) Sgt. Grandstaff stated that he did not know if PO Nuzzi touched § 87(2)(b) before she fell on the ground because the trip and the fall of both happened instantaneously. § 87(2)(g) SGT Grandstaff said that no force was ever used to put § 87(2)(b) onto the ground, and that § 87(2)(b) simply tripped.

When both PO Nuzzi and § 87(2)(b) fell to the ground, Sgt. Grandstaff went to the ground as well to help handcuff § 87(2)(b). § 87(2)(b) was in the middle and PO Nuzzi was on the right of her and Sgt. Grandstaff was on the left of her. Sgt. Grandstaff stated that neither officer was on top of § 87(2)(b). Also in direct contrast to PO Nuzzi's statement, Sgt. Grandstaff stated that he had not touched § 87(2)(b) prior to the fall onto the ground and that he only touched her once she was on the ground. He said that the reason for touching her once she was on the ground was that he wanted to handcuff her. § 87(2)(b) was rear handcuffed while she was lying on the ground, but SGT Grandstaff is uncertain as to who handcuffed her. Once § 87(2)(b)'s handcuffs were on both officers lifted § 87(2)(b) off of the ground and placed her in the car. SGT Grandstaff stated that there was nothing that happened in between the handcuffs being put on and placing § 87(2)(b) in the car.

Sgt. Grandstaff was shown photograph number 4, which shows § 87(2)(b) standing up without handcuffs on, Sgt. Grandstaff holding onto § 87(2)(b)'s left arm and PO Nuzzi holding onto § 87(2)(b)'s hair (enclosure 9C). Sgt. Grandstaff stated that at this moment he was trying to handcuff § 87(2)(b). Sgt. Grandstaff was asked how this is possible given that his statement early was that he did not touch § 87(2)(b) before she was lying on the ground and that he did not attempt to handcuff her until she was lying on the ground. Sgt. Grandstaff stated that it is possible that after § 87(2)(b) was on the ground she got back off the ground. Sgt. Grandstaff stated that in this picture he has a hold of § 87(2)(b)'s left arm and PO Nuzzi is grabbing § 87(2)(b) from behind. He stated that he believed that § 87(2)(b) may have tripped and fallen to the ground with PO Nuzzi as depicted in photograph 1 and then jumped back up again and that they struggled with § 87(2)(b) standing up to get the handcuffs on her. § 87(2)(g)

§ 87(2)(g)

Undisputed and Disputed Facts

It is not disputed that fireworks were being lit on July 4, 2004 and it is not disputed that PO Nuzzi and Sgt. Grandstaff saw § 87(2)(b) in the street with a firework and a lighter. The officers stopped and PO Nuzzi asked § 87(2)(b) to get out of the street. § 87(2)(b) exchanged some words with the officers and then followed their order to get out of the street by walking away. The officers got out of the car and approached § 87(2)(b). One of the officers took the lighter. § 87(2)(b) and PO Nuzzi ended up on the ground. Sgt. Grandstaff helped PO Nuzzi handcuff § 87(2)(g). § 87(2)(g) was placed in the police car and taken to the 70th Precinct. § 87(2)(b) was searched as a result of her arrest and a marijuana cigarette was found. § 87(2)(b) saw EMS while she was in custody, but she did not go with the ambulance. § 87(2)(b) was charged § 87(2)(a) 160.50

§ 87(2)(g)

Determination of Facts

PO Nuzzi stated that they were on their way to an assault in progress on § 87(2)(b) in Brooklyn, when they saw § 87(2)(b). § 87(2)(b), § 87(2)(b) and § 87(2)(b) all stated that there were fireworks going on in the street, but that § 87(2)(b) did not light it. § 87(2)(b) and § 87(2)(b) also did not see § 87(2)(b) light the firework. § 87(2)(g), § 87(2)(b), § 87(2)(b), § 87(2)(b) and the officers said that § 87(2)(b) did light the firework. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

Allegation A: PO Scott Nuzzi spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(g)

[REDACTED]. In the OATH case *Police Department v. Carlton* (Index Nos. 869/00 and 876/00), a similar allegation of discourtesy was sustained as misconduct. Specifically, the Court found:

"Officers Carlton and Spalma responded to a dispute between East Coast employees and a couple whose car they had immobilized, a familiar event for these officers. There was no reason, at the inception, to use profanity. It was not employed to gain compliance but as an opinion of the job the men were performing. I find the evidence demonstrates that Officer Carlton addressed the employees as "scumbags," and in response, James Forgione felt compelled to respond in turn. Thus, Officer Carlton's use of this particular form of vulgarity in this context was unnecessarily rude and belligerent. Therefore, as to Officer Carlton, that portion of Specification three charging him with calling complainants "scumbags," is sustained.

§ 87(2)(g)

[REDACTED].

Allegation B: Sgt. Norman Grandstaff used force against § 87(2)(b)

Allegation C: PO Scott Nuzzi used force against § 87(2)(b)

Patrol Guide Procedure 203-11 states "only that amount of force necessary to overcome resistance will be used to effect an arrest" (Enclosure 2A-2B). § 87(2)(g)

[REDACTED] When Sgt. Grandstaff and PO Nuzzi first spoke with § 87(2)(b) they were sitting in their car and they told her to get out of the street. § 87(2)(g)

[REDACTED]

[REDACTED] § 87(2)(b) is 5'4 and 130 pounds, while PO Nuzzi is 6'0 and 240 pounds. According to the medical records, § 87(2)(b) received pain in her back from this use of force.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Allegation D: PO Scott Nuzzi used a chokehold on § 87(2)(b)

Patrol Guide Procedure 203-11 states, "Members of the New York City Police Department will NOT use chokeholds. A chokehold shall include, but is not limited to, any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air." § 87(2)(b) alleged that PO Nuzzi put her in a headlock, which restricted her breathing. § 87(2)(g) § 87(2)(b) stated that PO Nuzzi wrapped his arm around § 87(2)(b)'s neck after pulling her hair. § 87(2)(g) § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) all stated that PO Nuzzi pulled § 87(2)(b) by the hair and pushed her forward, none of them said that an arm was placed across her neck. In addition, there are no pictures of PO Nuzzi with his arm across § 87(2)(b)'s neck. § 87(2)(g)

[Redacted]
[Redacted]
[Redacted]

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: